

25STCV07148 25STCV07148

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F28%2F2026

Source SHA-256: 4e16b378364e5bd1f4de5835f379a9c5c46cf86340c70845b59b94cde4f3e109

Case Number: 25STCV07148 Hearing Date: August 28, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

CHRISTINA AMOROSO,

Plaintiff,

vs.

OMEGA HOME IMPROVEMENT INC., et al.,

Defendants.

Case No.:

25STCV07148

Hearing Date:

August 28, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF AND

CROSS-DEFENDANT CHRISTINA AMOROSO'S MOTION FOR ATTORNEY FEES PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16(c)

AND RELATED CROSS-ACTION

Background

On March 13, 2025,

Plaintiff Christina Amoroso ("Plaintiff") sued Defendants Omega Home Improvement Inc., Rosa Elvira Rodriguez, and 1152 La Cienega Homeowner's Association (the "HOA") (collectively, "Defendants") alleging three causes of action for (1) negligence; (2) breach of covenants, conditions, and restrictions; and (3) nuisance.

Plaintiff owns a

residential unit at 1152 La Cienega, a common interest development. (Compl., ¶ 1.) The HOA manages and controls the development, including the unit in which Plaintiff resides. (Compl., ¶ 4.) Plaintiff is a member of the homeowners' association by virtue of her ownership of her residential unit. (Ibid.)

On July 29, 2025, the

HOA filed a cross-complaint against Plaintiff. On August 11, 2025, the HOA filed the operative first amended cross-complaint ("FACC") alleging five causes of action for (1) breach of covenants, conditions, and restrictions; (2) nuisance; (3) negligence; (4) breach of contract; and (5) declaratory relief.

On September 8, 2025,

Plaintiff filed a Special Motion to Strike (anti-SLAPP) the fourth cause of action in the FACC. On November 6, 2025, the Court heard the parties' arguments and ordered supplemental briefing.

On April 23, 2026, the

Court granted Plaintiff's anti-SLAPP motion as to the fourth cause of action for breach of contract.

Plaintiff now moves for

attorney fees and costs in the amount of \$78,440.73, pursuant to Code of Civil Procedure section 425.16, subdivision (c), for prevailing on her anti-SLAPP motion. The HOA opposes. Plaintiff replied.

Legal Standard

The anti-SLAPP statute

(strategic lawsuits against public participation) protects parties from frivolous lawsuits: “you have a right not to be dragged through the courts because you exercised your constitutional rights.” ((People ex rel. Lockyer v. Brar (2004) 115 Cal.App.4th 1315, 1317.)

If a defendant prevails on their anti-SLAPP motion, they are entitled to attorney fees and costs as a matter of right. (Code Civ. Proc., § 425.16, subd. (c)(1).) An award of fees may also include “the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1141.)

“[A] party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of a trial court.” ((Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 340 (Mann).) “Where the results of the motion are ‘minimal’ or ‘insignificant’ a court does not abuse its discretion in finding the defendant was not a prevailing party.” (Ibid.)

Discussion

As the prevailing cross-defendant in the special motion to strike the HOA’s FACC’s fourth cause of action, Plaintiff requests attorney fees in the total amount of \$78,440.73.

A. Attorney Fees Sought Against Opposing Counsel

As a preliminary matter, Plaintiff’s notice of motion explicitly moves “for an award of mandatory attorney’s fees and costs against Defendant and Cross-Complainant 1152 La

Cienega Homeowners Association ('HOA') and its legal counsel, Briscoe Prows Kao Ivester & Bazel LLP, in the total amount of \$78,440.73..." (Notice of Mot., 2:6-8.)

The HOA asserts that the statute "does not authorize that relief." (Opp., 6:3.) The HOA cites *Moore v. Kaufman* (2010) 189 Cal.App.4th 604, 615, where the court expressed that "[i]t is true that the statute should be broadly construed (see § 425.16, subd. (a)), but that principle by itself cannot justify interpreting the statute to authorize either a mandatory or a discretionary fee award against plaintiff's counsel. As we have explained, the statute says nothing about mandatory fee awards against counsel, and no court has ever interpreted the statute as requiring such an award... We must interpret the statute broadly, but we also must not rewrite it. The statute does not provide for an attorney fees award against plaintiff's counsel."

In reply, Plaintiff states that "[t]he HOA correctly observes that Section 425.16(c) does not authorize imposing a prevailing movant's statutory fee award directly against opposing counsel... Amoroso therefore withdraws that portion of the requested relief and seeks the award against the HOA only." (Reply, 3:15-18.)

Accordingly, this point is now moot, and fees will only be awarded against the HOA.

B. The Attorney Fees and Costs Sought are Reasonable

Plaintiff "seeks: (a) reasonable and market rate attorney's fees totaling \$75,230 incurred in connection with the preparation the above-defined Specific Legal Services, (b) third party, out of pocket costs and expenses in the amount of \$3,210.73, totaling (c) an aggregate fee and cost recover to Amoroso of \$78,440.73." (Mot., 9:11-14.)

Two attorneys worked on the instant case: Plaintiff's attorney since the inception of litigation, Kenneth G. Ruttenberg, and Kirk E. Schenck, an attorney specifically enlisted to assist with the anti-SLAPP motion. In support of the instant motion, Plaintiff provides two declarations from Ruttenberg and Schenck. The Court reviewed both declarations

and found that Plaintiff's motion adequately summarized the fee requests, as quoted and discussed below.

Plaintiff asserts that "Ruttenberg's

hourly rate for legal services is \$650 per hour. Ruttenberg Decl. at ¶ 12.

Under current custom and practice in the Los Angeles County Metropolitan area, where attorneys of Ruttenberg's skill and 30-year experience level in civil

litigation, including first amendment and anti-slapp law, regularly charge in

excess of \$900 per hour for similarly sophisticated litigation services,

Ruttenberg's fee rate of \$650 per hour certainly falls within any 'reasonableness'

categorization for attorneys of comparable experience and skill. Ibid. Schenck's hourly rate for legal services

is \$500 per hour. Schenck Decl. at ¶ 11. Under current custom and practice in

the Los Angeles County Metropolitan area, where attorneys of Schenck's skill

and with over 25 years of experience in media, intellectual property and First

Amendment law regularly charge in excess of \$900 per hour for similarly

sophisticated litigation services, Schenck's fee rate of \$500 per hour

certainly falls within any 'reasonableness' categorization for attorneys of

comparable experience and skill." (Mot., 9:16-27.)

Plaintiff's motion

explains that "counsel consolidated their work product for efficiency. Outside

of attending the hearings on the Anti-Slapp Motion or meeting and conferring

with the HOA's counsel (which required both to be present), Ruttenberg and

Schenck did not bill for overlapping tasks. Ruttenberg Decl. at ¶ 13 and

Schenck Decl. at ¶ 12. Ruttenberg and Schenck took on separate and distinct

tasks so as to avoid potentially 'unreasonable' billing. For example, Schenck

conducted the legal research and prepared the initial drafts of both the

Anti-Slapp Motion and Reply to the HOA's Opposition, whereas Ruttenberg revised

and finalized the same for filing." (Mot., 10:1-8.)

Plaintiff discusses the

amount of work that went into the anti-SLAPP motion. Specifically, that "there

were four hearings on the Anti-Slapp Motion, all of which Amoroso's counsel had

to prepare for and attend. Ruttenberg Decl. at ¶ 11; Schenck Decl. at ¶ 10. In

addition to drafting the Anti-Slapp Motion and Reply to the HOA's Opposition

thereto, Amoroso's counsel had to draft two supplemental briefs, the first

regarding the interplay between the Court's order overruling the HOA's Demurrer

and the Anti-Slapp Motion and the second regarding the HOA's failure to

properly plead a required element for its breach of contract claim. Ruttenberg

Decl. at ¶¶ 6, 9; Schenck Decl. at ¶¶ 5, 8. In total, Amoroso's counsel drafted

four briefs (with a combined page total in excess of 35 pages), evidentiary objections, reviewed and analyzed three briefs from the HOA, met and conferred with the HOA as ordered by the Court, attended four hearings, and performed extensive legal research and preparation for the same. This does not include the work required to draft and file the present Motion, review and analyze the HOA's expected Opposition thereto, draft a Reply to the same, and attend the ultimate hearing." (Mot., 11:8-20.) Plaintiff also asserts that "succeeding on the Anti-Slapp Motion required complex legal research from Amoroso's counsel. Ruttenberg Decl. at ¶ 7; Schenck Decl. at ¶ 6." (Mot., 11:21-22.)

Plaintiff explains that

"[i]n order to preserve attorney-client privileges and as permitted under California law (see *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 785-786), Amoroso's counsel has specifically and accurately documented the total number of hours (or portions thereof) spent on each of the tasks comprising the Specific Legal Services based on the information in, but without attaching, their firms' detailed monthly billing statements (the 'Billing Statements'), as they contain extensive attorney-client communications with Amoroso regarding legal positions and strategy. Ruttenberg Decl. at ¶¶ 13-22; Schenck Decl. at ¶¶ 12-20." (Mot., 13:20-27.) In *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 785-786, the court expressed that a trial court may solely rely on a declaration when deciding a fees reward, specifically stating that "[a]lthough a fee request ordinarily should be documented in great detail, it cannot be said ... that the absence of time records and billing statements deprive[s] [a] trial court of substantial evidence to support an award...." [Citation.] In the instant case, there is sufficient evidence upon which the trial court could rely in making its ruling. The lack of detailed billing statements perhaps is relevant to the credibility of Coates's declaration; however, the lack of billing statements does not automatically establish that there was insufficient evidence for the trial court to render a decision. The City contends that, without detailed billing statements, the trial court abdicated its role and had to 'take their word for it' that the declaration was accurate. As set forth ante, '[T]he verified time statements of [an] attorney[], as [an] officer[] of the court, are entitled to credence in the absence of a clear indication the records are erroneous.' [Citation.] The City does not point out any errors in the declaration that would lead to a finding the declaration was erroneous. Thus, it was proper for the trial court to rely on Coates's declaration."

In the declarations

provided by Plaintiff's attorneys, they outline the work they conducted to file and defend the anti-SLAPP motion, and they expressly explain that they billed only for work in connection with the anti-SLAPP motion. (See Ruttenberg Decl., ¶¶ 9-22; Schenck Decl., ¶¶ 8-20.) Plaintiff's motion states that "[t]he attorney's fees sought by this Motion are accurate, as they were originally documented and itemized as they were incurred by Ruttenberg and Schenck in the Billing Statements earmarking billable hours to 0.1 of an hour, containing detailed descriptions of the legal services performed, and satisfying all legal standards for evidence sufficient to support the award of attorney's fees requested herein. Ruttenberg Decl. at ¶¶ 16-26; Schenck Decl. at ¶¶ 15- 24. In the Billing Statements, Ruttenberg and Schenck contemporaneously created detailed descriptions of the individually-referenced, specific services they personally rendered in connection with each particular task relating to each element of the Specific Legal Services. In their declarations, both Ruttenberg and Schenck testify that they reviewed the Billing Statements for accuracy and derived the total sum of legal fees sought in this Motion directly based on this review. Ruttenberg Decl. at ¶¶ 19-27; Schenck Decl. at ¶¶ 17-24." (Mot., 14:12-23.)

Plaintiff further states

that "[i]n his Declaration, Ruttenberg testifies he incurred 59.2 hours of legal fees and \$3,210.73 in costs in connection with the Specific Legal Services. Ruttenberg Decl. at ¶¶ 18-24. At the reasonable rate of \$650 per hour, this yields a total of \$41,690.73 in attorney's fees and costs. Ruttenberg Decl. at ¶ 26. In his Declaration, Schenck testifies he incurred 73.5 hours of legal fees in connection with the Specific Legal Services. Schenck Decl. at ¶¶ 17-24. At the reasonable rate of \$500 per hour, this yields a total of \$36,750 in attorney's fees and costs. Schenck Decl. at ¶ 23. Thus, in total, this yields \$78,440.73 in attorney's fees and costs." (Mot., 14:24-15:2.) Plaintiff states that "Ruttenberg and Schenck did not bill Amoroso, or otherwise charge or account, for duplicative billing related to internal lawyer conferences and the review of junior attorney work product, overhead charges, support staff time, or other clerical work often billed by larger firms with several partners and associates working on the same matter. Ruttenberg Decl. at ¶¶ 16-17; Schenck Decl. at ¶¶ 15-16." (Mot., 15:21-25.)

Based on the foregoing

information provided by Plaintiff, the Court finds that the request for fees is sufficiently supported. Plaintiff's attorneys do not provide their detailed billing statements, but this is not per se unreasonable. Although the

discussion above merely presents a summary, the level of detail in counsel's declarations provides the Court with sufficient evidence and explanation regarding the reasonableness of the hours worked. The case ultimately had a favorable outcome for Plaintiff, but it took multiple hearings and sets of briefing, which, of course, drove up the expended hours. Thus, 132.7 hours of attorney time is not unreasonable.

Moreover, the rates

sought by counsel are in line with, or lower than, what this Court has seen regarding complex issues, such as an anti-SLAPP motion. The requested rates also support each attorney's expertise and decades of experience. Although California employs the lodestar method for determining reasonable fees, counsel actually charged these rates to Plaintiff, which, if anything, supports a floor for counsel's hourly rate. ((See *Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1158-1159 ["the amount of fees billed to [the client] was substantially lower than the amount sought by the attorney's fees motion and awarded by the trial court. The amount which [the client] agreed to pay does not, however, necessarily place a cap on the amount of an attorney's fees award. 'The reasonable market value of the attorney's services is the measure of a reasonable hourly rate.'"].))

Accordingly, the rates sought are reasonable.

However, the HOA challenges

Plaintiff's request. First, the HOA contends that Plaintiff "bears the burden of providing enough information for the Court to determine what work was performed, how much time was spent performing it, and whether that time was reasonably necessary," but "[h]er submissions do not satisfy that burden."

(Opp., 8:7-9.) Specifically, the HOA contends that without a billing chart, there is not a meaningful review of whether the hours claimed and costs incurred are reasonable. The HOA also contends that the "block billing [] prevents the Court from separating reasonable compensable work from excessive, unnecessary,

duplicative, or unrelated work." (Opp., 10:2-3.) The Court notes that in *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1325, when

discussing an attorney's vague billing entries, the Court of Appeal stated that "[b]lockbilling, while not objectionable per se in our view, exacerbated the vagueness of counsel's fee request, a risky choice since the burden of proving entitlement to fees rests on the moving party." Accordingly, block billing may be unreasonable if it creates vague entries that obscure the true nature of the claimed work. However, in this case, Plaintiff's counsel attests that the amounts sought were actually billed to Plaintiff and Plaintiff's counsel included sufficient detail discussing the tasks performed. Although the hours

presented are technically block billed, the Court finds that Plaintiff's counsel included enough detail for each entry that reducing the fees as impermissible block billing is unnecessary.

In support of the HOA's contention that Plaintiff's attorneys' declarations should be viewed with "distrust," the HOA cites *Copenbarger v. Morris Cerullo World Evangelism, Inc.* (2018)

29 Cal.App.5th 1. However, as Plaintiff points out in opposition, that case does not mirror the situation here. In *Copenbarger*, the court found that the testimony applicable to the unproduced attorney invoices was inadmissible, stating as follows: "Lloyd Copenbarger testified he had the invoices, and his attorneys would have copies of them too, but he chose not to bring the invoices with him to trial. Thus, under Evidence Code section 1523, Lloyd Copenbarger's testimony was inadmissible to prove the content of the invoices. The trial court should have sustained MCWE's secondary evidence rule and hearsay objections to Lloyd Copenbarger's testimony." (Id. at p. 14.) Further, the Appellate Court expressed that "Lloyd Copenbarger's testimony, even if admissible, was insufficient to prove the amount of attorney fees or the nature of the work performed. Although the trial court found Lloyd Copenbarger to be credible, the problem is not credibility: The problem is Lloyd Copenbarger provided no relevant information of the time spent, work performed, or the hourly rates of attorneys in the UD Action. A party seeking fees as a prevailing party must present evidence of the time spent and the hourly rate of each attorney." (Ibid.) In the present case, the parties are not at trial, the HOA did not interpose evidentiary objections to the declarations provided by Plaintiff, and Plaintiff's attorneys provide significant and relevant evidence regarding the fees sought and time expended. "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." ((*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.)

The HOA also contends that the amounts sought are excessive, duplicative, and unnecessarily performed by senior attorneys. However, the HOA does not demonstrate how the issues involved in the underlying motion warranted the use of junior counsel, nor how the requested fees are duplicative. Anti-SLAPPs are inherently more difficult, complex motions, and given the history of this specific case, this case fares no differently. As stated by the court in *Raining Data Corp. v. Barrenechea*, supra, 175 Cal.App.4th at p. 1375-1376, "Raining Data's

counsel's declarations explained how the two law firms collaborated on the anti-SLAPP motion, by allocating different legal issues between the firms and assigning different tasks to each. An 'assertion [that] is unaccompanied by any citation to the record or any explanation of which fees were unreasonable or duplicative' is insufficient to disturb the trial court's discretionary award of attorney fees."

Lastly, the HOA contends that the future fees sought by Plaintiff for 5 hours in preparing the Reply and 3 hours for preparing for and attending the hearing are unreasonable and excessive. However, in reply, Ruttenberg supplies a supplemental declaration which attests, inter alia, "[i]n my original declaration, I reasonably anticipated spending five hours reviewing the HOA's Opposition, researching the authorities and issues raised therein, and preparing Amoroso's Reply. Ruttenberg Decl., ¶ 21(g). [¶] I have now completed that work. I spent 5.1 hours reviewing the HOA's Opposition and supporting declaration, researching the authorities and arguments raised in the Opposition, and preparing Amoroso's Reply and this Supplemental Declaration. [¶] Although the actual time slightly exceeded my original five-hour estimate, Amoroso does not seek compensation for the additional 0.1 hour." (Ruttenberg Decl., ¶¶ 4-6.) Ruttenberg also states that "[t]he three hours originally estimated for final preparation for and attendance at the hearing remain prospective and reasonable." (Ruttenberg Decl., ¶ 7.) The Court finds that this supplemental declaration removes doubt regarding the amount of time counsel sought for anticipated fees regarding the reply. Although the hearing has yet to occur, counsel's experience provides him with a reasonable gauge for how long attending, preparing, and arguing takes. Accordingly, the Court finds the three hours not yet incurred reasonable.

Based on the foregoing, the Court finds that Plaintiff sufficiently supported her request for fees and costs and declines to lower the amount sought. Accordingly, the Court grants the request for attorney fees and costs in its entirety.

Conclusion

Based on the foregoing, Plaintiff's request for attorney fees and costs in the total amount of \$78,440.73, comprising \$75,230 in attorney fees and \$3,210.73 in costs, is GRANTED.

The HOA is ordered to pay
within 30 days of the date of this Order.

Plaintiff is ordered to
provide notice of this Order.

DATED: August
28, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court